**SMM HOLDINGS (PVT) LTD**
**(Under the administration of the Administrator**
**ARAFAS MTAUSI GWARADZIMBA N.O)**

**Versus**

**MAXWELL SIZIBA**

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 22 JULY AND 21 AUGUST 2025

**Special Plea**

*M Muguti*, for the plaintiffs
*S. Chamunorwa,* for the defendant

**KABASA J:** The defendant was employed by the first plaintiff until 22 October 2011 when his employment contract was terminated. After the termination of employment, the defendant did not vacate the company house which was part of his employment benefits. He had 3 months within which to vacate after such termination. The plaintiff subsequently issued summons for his eviction. Summons were issued on 20 March 2025.

The defendant filed a special plea in response to the plaintiff's claim. This judgment is concerned with that special plea. Of the issues raised in that plea, one of them relates to prescription. The parties agreed that the facts were common cause and to obviate the leading of evidence, filed a statement of Agreed Facts. I propose to reproduce this statement as it clearly sets out what this court is seized with, giving both the background and the issues to be determined. The statement of agreed facts states the following:

> "Whereas the plaintiffs issued summons against the defendant claiming an order for the eviction of the defendant and all those claiming through him from house No. 20 School Avenue, Noelvale, Zvishavane;
>
> And whereas the defendant entered appearance to defend and subsequently a special plea:

And whereas in the special plea, the defendant has raised three issues, namely, that this honourable court has no jurisdiction to entertain the matter, that the claim has prescribed and that the plaintiffs have dirty hands and ought therefore to be refused relief:

And whereas the defendant has abandoned his complaint regarding dirty hands as it is not a special plea *sensu stricto*;

And whereas the parties wish to proceed on the two other issues;

And whereas the parties are agreed on the facts and do not wish to lead evidence:

Now therefore, the parties submit the following as the facts that are common cause:

1. The defendant was employed by the plaintiffs until 22 October 2011 when his employment was terminated.

2. In terms of his contract of employment, he was entitled to employer provided accommodation and was thus allocated house No. 20 School Avenue, Noelvale, Zvishavane.

3. The defendant took up residence at this property and has remained in occupation despite the termination of his employment on 22 October 2011.

4. The right to reside at No. 20 School Avenue, Noelvale, Zvishavane was tied to his employment with the plaintiffs.

5. Upon termination of the defendant's employment, the plaintiffs, acting in terms of section 12 of the Labour Act [Chapter 28:01] as read with SI 52/90 allowed the defendant 90 days to vacate the property.

6. Despite the expiry of the 90 days, the defendant did not vacate the property on the grounds that the plaintiffs owe him terminal benefits which remain outstanding to date.

7. The duty to act arose on 16 January 2012.

8. The legal issues that arise from those Agreed Facts and upon which judgment is sought are:-

(a) Whether or not this Honourable court has jurisdiction to entertain this matter.

(b) Whether or not a claim based on *rei vindicatio* is subject to prescription."

Counsel for the defendant contended that this court has no jurisdiction and it matters not that the remedy of *rei vindicatio* is a common law remedy. There is a remedy in the Labour Act and the dispute arising from the eviction and the resistance by the defendant arises from the contract of employment, so counsel argued.

Counsel referred to the decision in *T.N Harlequin Luxaire Ltd* v *Matsvimbo & Ors* S 8-22 where the court held that in any matter that is a labour matter the High Court's jurisdiction is ousted as the Labour Court has exclusive jurisdiction to deal with such matters. He further argued that whereas in *DHL International (Pvt) Ltd* v *Madzikanda* HH 51-2010 the High Court assumed jurisdiction on the basis that the claim by DHL for the return of a motor vehicle which a dismissed employee was holding onto was based purely on common law ownership rights, which rights do not fall under any labour cause of action or remedy, *in casu,* the plaintiffs stated that the benefit of the house was a result of an employment contract and so the housing benefit cannot be separated from defendant's employment. The defendant is staying put because he is owed terminal benefits, making the dispute a labour issue. Section 2 of the Labour Act [Chapter 28:01] defines dispute thus "means a dispute relating to any matter concerning employment which is governed by this Act." The dispute is therefore as envisaged by the definition in s 2, so counsel argued.

The High Court therefore has no jurisdiction to deal with the matter. Is counsel for the defendant correct?

Counsel for the plaintiffs held a different view contending that the submissions by defendant's counsel are not a correct articulation of the legal position. Counsel submitted that the employment contract between the parties was conclusively terminated. The termination is not subject to challenge. It is a fact. That relationship no longer exists. Section 2A of the Labour Act shows that the Act governs the relationship between employers and employees. In *TN Harlequin Luxaire Ltd (supra)* the termination of the employment relationship was in dispute. The employees had rejected new contracts based on performance-linked remuneration which contracts were meant to replace the contracts without limit of time which the employer had terminated. The High Court had ruled that the termination of the employees' contracts was unlawful and ordered their reinstatement. The Supreme Court, on appeal, determined that labour matters are subject to the exclusive jurisdiction of the Labour Court.

The issue, so counsel argued, is whether or not the employment relationship has been conclusively terminated. Reference was made to MAKARAU JP's (as she then was) decision in *Medical Investments Ltd* v *Pedzisayi* 2010 (1) ZLR 111 where the court stated that where the status of the former employee is without dispute, the *rei-vindicatio* lies at the instance of an employer and falls outside the purview of the Labour Court.

I am persuaded by counsel for the plaintiffs' argument. The defendant *in casu* is no longer an employee of the plaintiffs. That employer-employee relationship was terminated conclusively in 2011. There is no dispute regarding defendant's employment status. If the word employee were to be used in reference to the defendant, it would only be to describe him as a former employee of the plaintiffs. The fact that he believes he is owed terminal benefits does not change this status. In *Victoria Falls Municipality v Syatimbula* HB75/22 I made the point that where an employee whose contract has been terminated is owed monies by the former employer, such employee utilises the legal route to claim whatever he /she is owed but that does not bestow on him/her a right of retention of property belonging to the former employer. DUBE-BANDA J in *The Administrator & Anor v Zhou* HB47/23 made the same point that there is no nexus between a former employee's occupation of the employer's house and salary arrears he may be owed. The status remains, there is no longer an employer-employee relationship.

The plaintiffs' action is under *rei vindicatio*. They are desirous to re-claim their house from someone who is occupying it without their consent. This is not a matter whose cause of action and remedy thereto is located in the Labour Act.

The argument that s 12 C and s 13 of the Labour Act which provides for retrenchment and compensation for loss of employment, wages and benefits upon termination of employment extends the Labour Act to post employment fails to appreciate that the payment of these wages and compensation is located within the Labour Act and the payment of such is within the purview of the Labour Court which has exclusive jurisdiction to deal with such matters. These are monies owed as a result of the employee's engagement by the employer, which remuneration the employee is entitled to. The termination of employment does not disentitle such employee to payment of these monies. The same cannot be said of a housing benefit which is provided as a result of the employment contract. Once such contract is terminated that benefit ceases to exist and an employer seeking to repossess the house does so as any owner of property would seek to assert ownership of their property.

It follows therefore, that where the action is grounded in common law and a former employer is seeking to vindicate its rights over a property it owns, such cannot be said to be located in the Labour Act and therefore for the exclusive jurisdiction of the Labour Court. The issue is about possession of property by a former employee owned by the former employer, post-employment.

In *Mbirikira & Ors* v *Hwange Colliery Company Ltd & Anor* LC/MT/15/24, a Labour court judgment cited by counsel for the defendant the issue related to a suspension by the Administrator, of the Code of Conduct and the provisions of the Labour Act. There was an employer-employee relationship and the issue of the validity of the administrator's actions fell squarely within the Labour Act and therefore within the purview of the Labour Court. The case is therefore not relevant in relation to the case I am seized with.

Counsel for the plaintiffs' argument finds support in the case of *Arundel School Trust* v *Petting Rea* 2014 (1) ZLR 596 and *Surface Investments (Pvt) Ltd* v *Chinyani* 2014 (1) ZLR 653. These cases, as counsel correctly observed, related to vindicatory actions where the owner of the property sought to recover that property from an employee whose employment contract had been terminated. The issue was not a labour dispute but a property ownership claim.

That said, this court therefore has jurisdiction to deal with the matter. The contention by the defendant seeking to oust this court's jurisdiction is without merit.

I turn now to the second issue.

Is a claim for *rei vindicatio* subject to prescription? Is it a debt as envisaged by s15 of the Prescription Act and therefore subject to extinctive prescription after the lapse of 3 years?

Counsel for the defendant contended that section 2 of the Prescription Act [Chapter 8:11] defines a debt as:

> "Anything which may be sued for or claimed by reason of an obligation arising from statute, contract, delict or otherwise."

The prescription period is 3 years and the plaintiffs' action was instituted 14 years after the cause of action. The claim has therefore prescribed, so counsel argued.

Counsel relied on the decisions in *John Conradie Trust* v *The Federation of Kushanda Pre-Schools Trust & Ors* S 12-17 and *Banket Trading Co. P/L* v *Chikwenga* HH 538-24 for

the proposition that a claim for vindication is a debt which is subject to prescription in terms of the Act.

Counsel urged the court not to follow the decision in *Chimbetete* v *Bako* ZWHHC 36-25 where the court held that *rei vindicatio* is a claim of ownership, not a debt and therefore does not prescribe after 3 years and further that prescription would be acquisitive in terms of s 4 of the Prescription Act, whose period is 30 years not 3.

The court in the *Chimbetete c*ase (supra) was not alerted to the *John Conradie* case and so did not consider it. In *Banket (Pvt) Ltd* v *Chikwenga* HH 538-24 the court stated that it was bound by the *John Conradie* decision. The correct legal position therefore, so counsel argued, is that extinctive and not acquisitive prescription applies in a *rei vindication* claim. With the lapse of 3 years the claim prescribed.

This argument appears to find support in *Reformed Church in Zimbabwe* v *Makuwerere & Ors* HH216/24 where MUNANGATI-MANONGWA cited the *John Conradie Trust* case (supra) and quoted therefrom: -

> "Since the applicant is suing the third respondent for vindication, its suit falls squarely within the ambit of "anything which may be sued for." What this means is that a claim for vindication of property amounts to a claim for a debt in terms of the Prescription Act."
>
> The learned Judge proceeded to remark:-
>
> "The ruling in *John Conradie Trust* case supra means that a vindicatory claim prescribes after three (3) years calculated from the date the cause of action arose."

Counsel for the plaintiffs' argument is that the plaintiff is the owner of the property and the defendant is an unlawful occupier. The defendant can therefore not seek to perpetuate his occupation of the plaintiff's house by claiming that the *rei vindicatio* claim has prescribed. In support of this proposition counsel cited *Honamombe* v *Chukuruwo* HH 296-04 where the court said: -

> "The defendant or any other occupant cannot want to remain on land owned by another and claim that the owner should have removed her 3 years ago. The respondent cannot raise the issue of prescription where she is an unlawful occupier and continuously in wrongful possession of part of the appellant's land. The appellant's claim thus remains extant and hence the claim has not prescribed."

The reasoning in the *Honamombe* case accords with the reasoning in the *Chimbetete v Bako* case where DUBE-BANDA J cited the decision of the Supreme Court of South Africa in *Absa*

*Bank v Keet* (817/13) [2015] ZASCA 81(28 May 2015), where that court, dealing with a similar provision as the Zimbabwean Prescription Act one had this to say:

"In the circumstances, the view that the vindicatory action is a 'debt' as contemplated by the Prescription Act which prescribes after three years is, in my opinion, contrary to the scheme of the Act. It would, if upheld, undermine the significance of the distinction which the Prescription Act draws between extinctive prescription, on the one hand and acquisitive prescription on the other. In the case of acquisitive prescription, one has to do with real rights. In the case of extinctive prescription, one has to do with the relationship between a creditor and a debtor. The effect of extinctive prescription is that a right of action vested in the creditor, which is a corollary of a 'debt', becomes extinguished simultaneously with that debt. In other words, what the creditor loses as a result of operation of extinctive prescription is his right of action against the debtor, which is a personal right. The creditor does not lose a right to a thing. To equate the vindicatory action with a 'debt' has an unintended consequence in that by way of extinctive prescription the debtor acquires ownership of a creditor's property after three years instead of 30 years that is provided for in s1 of the Prescription Act. This is an absurdity and not a sensible interpretation of the Prescription Act"

I find this reasoning very attractive but the issue is what the position in this country is as regards the nature of a vindicatory claim. In light of the *John Conradie* decision, what is therefore the legal position regarding the issue whether an action for *rei vindicatio* prescribes after 3 years just like any debt?

The *John Conradie* case was a decision by a single judge sitting in chambers and presiding over a condonation application where the prospects of success hinged on whether a *rei vindicatio* claim is a debt like any other and so subject to extinctive prescription. The fact however is, it is a Supreme Court decision. The *stare decisis* rule states that such a decision is binding.

In the *Conradie* case BHUNU JA had this to say: -

> "Prescription does not deal with the merits. It simply seeks to extinguish old stale debts not claimed within the prescribed time limits. The rationale for prescription was amply captured by the learned trial Judge where he quotes Wessels in *The Law of Contracts in South Africa,* Vol II par 2766 where the learned author says:-
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> "Creditors should not be allowed to permit claims to grow stale because they embarrass the debtor in his proof of payment and because it is upsetting to the social order that the financial relations of the debtor towards third parties should suddenly be disturbed by the demanding from him payment of forgotten claims."
>
> The learned trial Judge having correctly found that the applicant's claim had prescribed, I accordingly find that he has forfeited his right to vindicate the ***disputed*** property from the applicant whether or not he has a valid claim against it." (my emphasis)

But in casu are we dealing with a disputed property? Is there a debt owed by the defendant to the plaintiffs? I would say the answer to both questions is in the negative. There is no dispute the house belongs to the plaintiff. The plaintiff is the owner of this house. They

are seeking to assert the real right they have by virtue of their ownership. Counsel for the plaintiffs cited the Supreme Court decision in *Chidzambwa v Minister of Local Government Public Works and National Housing* S64/22, a case wherein the appellant, a Government employee, had been staying in a Government house which was then offered to her to buy but she failed to accept the offer and consequently to exercise the right extended to her to purchase the property. She was not paying rent as there was no longer a valid lease between her and the Government and therefore did not owe rentals to the Government. The Government through the responsible Minister sought to evict her but she resisted eviction, claiming, *inter alia,* that the claim of *rei vindicatio* had prescribed since she had been occupying the house since 2003 without a valid lease. The summons for her eviction were only issued in 2019, 16 years later. The issue of ownership of the house was not disputed. In dismissing her appeal against the decision of the High Court to uphold the Magistrates Court's decision wherein the respondent's claim for eviction was granted, BHUNU JA, sitting with MATHONSI and KUDYA JJA had this to say:

"In this case the appellant occupies the house in circumstances where she recognises the ownership of the respondent, hence the question of prescription does not arise"

The court held that the High Court was correct in holding that the question of prescription did not arise. The learned JA went on to say:

"That finding renders the correctness or otherwise of the case of *John Conradie Trust v The Federation of Kushanda Schools Trust and Ors*(supra) an irrelevant consideration. The determination as to whether a vindication claim is a claim for a debt liable to prescription is of no moment in this case and therefore nugatory"

The learned JA also made the following pertinent remarks:

"The appellant's admission that she had no contract of sale for the house with the owner, that is to say the respondent, divested her of any claim to ownership of the house. Both the trial magistrate and the learned judge *a quo* cannot therefore be faulted for coming to that conclusion. This is because in the absence of any valid sale of the house to the appellant no debt arose between the parties in respect of ownership of the house. As we have already seen, s16 of the Act provides that prescription shall commence to run as soon as a debt is due. Consequently, it follows as a matter of logic that in the absence of a debt between the parties, prescription could not begin to run over a non-existent debt or cause of action."

Turning to the issue of the ownership of the house *in casu*, such ownership is not disputed. The defendant is not residing at the house as a tenant whose tenancy is governed by a lease which comes with payment of rentals. He is in unlawful occupation of the house following his failure to vacate the house at the lapse of the 3 months grace period extended to him after the termination of his employment contract. He does not owe rent to the plaintiffs and there is therefore no debt between the parties. It is my considered view that in light of the court's finding in the *Chidzambwa* case, that where the defendant recognises the ownership of the plaintiffs the question of prescription does not arise, the defendant *in casu* cannot succeed in his special plea. The position would probably have been different had ownership been disputed and there was a debt owed to the plaintiffs. I therefore agree with counsel for the plaintiffs' argument that the issue of prescription does not arise. The *John Conradie* decision can therefore not be relied on given the facts of this particular case. Counsel for the defendant's reliance on the *Conradie* case as opposed to the *Chidzambwa* decision is, in my considered view, flawed.

It follows therefore that the defendant's special plea fails in respect of both the jurisdiction and prescription argument. The *rei vindicatio* claim is not a debt as contemplated in s15(d) and s2 of the Prescription Act. Thirty years have not lapsed for one to talk of acquisitive prescription. In any event the matter before me is on extinctive prescription not acquisitive prescription and with the failure of the prescription argument, the special plea equally fails.

That said therefore, the defendant's special plea cannot succeed on both grounds, that is jurisdiction and prescription.

As regards costs, costs follow the cause unless there is justification to order otherwise. I see no reason to depart from the norm.

In the result, I make the following order: -

The defendant's special plea be and is hereby dismissed, with costs.

*Chigariro Phiri & Partners*, plaintiffs' legal practitioners
*Calderwood, Bryce Hendrie & Partners*, Defendant's legal practitioners